

HOUSE No. 3415

The Commonwealth of Massachusetts

PRESENTED BY:

Margaret R. Scarsdale

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to contractor liability for unpermitted construction.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>1/10/2025</i>

HOUSE No. 3415

By Representative Scarsdale of Pepperell, a petition (accompanied by bill, House, No. 3415) of Margaret R. Scarsdale relative to contractor liability for unpermitted construction. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to contractor liability for unpermitted construction.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 94 of chapter 143 of the General Laws is hereby amended by adding the
2 following paragraph:-

3 (s) Notwithstanding any general or special law to the contrary, to promulgate rules and
4 regulations as part of the state building code mandating liability for contractors who perform
5 work without a required permit including, but not limited to, permits required by the state
6 building code, a municipality, section 40 of chapter 131, chapter 91 or any other permits required
7 by the General Laws. The rules and regulations shall include fines for contractors who perform
8 work without a required permit and shall mandate that contractors obtain permits personally or
9 retain copies of permits provided by a landowner for a reasonable time, to be provided to
10 permitting authorities upon request.